Chapter-V

Code of Conduct for Employees of MDES Institutions

1. General:

(i) **Every employee shall at all time**.

a) Maintain absolute integrity.
b) Maintain devotion to duty, and
c) Do nothing which is unbecoming of an employee of an educational institution.

(ii)

a) Every employee holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all employees for the time being under his control and authority.
b) No employee shall, in the performance of his official duties or in the exercise of powers conferred on him, act otherwise than in his best judgment except when he is acting under the direction of his official superior and shall, where he is acting under such direction obtain the direction in writing where practicable and where it is not practicable to obtain the direction in writing he shall obtain written confirming of the direction as soon thereafter as possible.

(iii) **Professional duties:**– Every employee shall

a) Be punctual in attendance in respect of his work and any other work connected with the duties assigned to him by the head of the institution.
b) Abide by the rules and regulations of the institution and show due respect to the constituted authority.
c) No employee shall-
    1. Knowingly or willfully neglect his duties.
    2. While on duty in the institution absent himself/herself (except with the previous permission of the head of the institution) from the institution.
    3. Remain absent from the institution without leave or without previous permission of the head of the institution.
    4. Neglect correction of class-work or home-work done by students.
    5. Indulge in or encourage any form of malpractice connected with examinations or any other college activity.
    6. Give private tuition.
    7. Prepare or publish any book or books, commonly known as keys, or assist or guides whether directly or indirectly, in their publication without the permission of Management.

(iv) **Communal activity:** No employee shall –

a) Practice, propagate or incite any student to practice, propagate casteism, communal or sectarian activity or untouchability.

b) Discriminate against any person on the ground of caste, creed, religion, language, place or origin, social and cultural background or any of them.

(v) **Behavior in public:** No employee shall –

a) Misbehave with or ill-treat any parent, guardian, student, teacher or other employee of the institution.
b) Behave or encourage or incite any student, teacher or other employee to behave in a rude or disorderly manner in the premises of the institution.
c) Indulge in any violence or any conduct which involves moral turpitude.
d) Organize or attend any meeting during the hours of the Institution except when he is required or permitted by the head of the Institution to do so.
e) Cause or incite any other person to cause, any damage to the institution /public property.

(vi) **Taking part in politics and elections:**

a. No employee shall be a member of or be otherwise associated with any political party or any organization which had taken part in politics nor shall take part in, subscribe in aid of, or assist in any other manner, any political movement of activity.
b. It shall be the duty of every employee to endeavor to prevent any member of his family from taking part in subscribing in aid of or assisting in any other manner any movement of activity which is or tends directly or indirectly, to be subversive of the Government And Management as by law established and where an employee in unable to prevent a member of his family from taking part in or subscribing in aid of or assisting in any manner, any such movement of activity he shall make a report to that effect to the Management.
c. If any question arises whether a party is a political party or whether any organization takes part in politics or whether any movement or activity falls within the scope of clause (b) the decision of the Governing Body thereon shall be final.
d. No employee shall canvass or otherwise interfere with or use his influence in connection with or take part in an election to any legislature or local authority.

Provide that –

1. An employee qualifies to vote in such election may exercise his right to vote, but where he does so, he shall give no indication of the manner in which he proposes to vote or has voted.
2. An employee shall not be deemed to have contravened the provisions of this sub-rule by reason only that he assists in the conduct of an election in the due performance of a duty imposed on him by or under any law for the time being in force.

(vii) Joining of Association by an employee – No employee shall join, or continue to be a member of an association with objects or activities of which are prejudicial to the interest of the sovereignty and integrity of India or public order or modesty or the Management.

(viii) Demonstration and strikes – No employee shall,

1. Engage himself or participate in any demonstration which is prejudicial to the interest of the sovereignty and integrity of India, the security of the State,

friendly relations with foreign states, public order, decency or morality, or which involves contempt of court, defamation or incitement to an offence; or

2. Resort to or in any way instigate, incite or abet, any form of strike by any member of employees against the institution and management.

Explanation: For the purpose of this rule, "Strike" means cessation of work (including any unauthorized absence from duty) by a body of employees acting in combination or a concerted refusal or a refusal under common understanding of any member of employees to work.

2. Criticism of Government or Management: No employee shall, in any radio broadcast or in any document published in his own name or anonymously, pseudonymously or in the name of any other person in any communication to the press or in any public utterance, make any statement of fact or option.

(i) Which has the effect of an adverse criticism of any current or recent policy in action of the State Government or Central Government or any other State Government or Management.

(ii) Which is capable of embarrassing the relations between, the State Government and the Central Government or any other state or Management

(iii) Which is capable of embarrassing the relations between, the Central Government and the Government of any foreign State:

3. Subscription: No employee shall except with the previous sanction of the Management ask for or accept contributions to or otherwise associate himself with the raising of any collections in cash or in kind in pursuance of any object whatever.

4. Canvassing of non-official or other influence: No employee shall bring or attempt to bring any political or other influence to bear upon any superior authority to further his interests in respect of matters pertaining to his service under the Management.

5. Gifts & Favors: Employees shall not during the tenure of their employment with MDES accept any gifts in kind or cash or indulge in accepting any favours from the Students, Parents of the Students, Traders or any suppliers of products to any of the Institution under MDES.

6. Public Demonstration in honor of employees: No employee shall except with the previous sanction of the Management, receive any complementary or valedictory address or accept any testimonial or attend any meeting or entertainment held in his honor or in the honor of any employee:

Provided that nothing in this rule shall apply to:-

(a) A farewell entertainment of a substantially private and informal character held in honor of an employee on superannuation.

(b) The acceptance of simple and inexpensive entertainment arranged by public bodies or institutions.

7. Private trade or employment:

(i) No employee shall, except with the previous sanction of the Management engage directly or indirectly in any trade or business or negotiate for or undertake any other employment.
Provided that an employee may, without such sanction, undertake honorary work a classical or charitable nature or occasional work of a literary, artistic or scientific character. However

a) He/she shall, within a period of one month of his undertaking any such work, report to the Management giving full details.
b) His/her official duties do not there by suffer and
c) He shall discontinue any such work, if so directed by the Management.

Provided further that, if the undertaking of any such work involves holding of an elective office he shall not seek election to any such office without the previous sanction of the Management

During the employment an employee shall not represent any individual, institution or any other organization/association nor shall indulge in any activities which are detrimental to the management.

Explanation

(a) Canvassing by an employee for a candidate or candidates for an elective office or in support of the business any type including insurance agency or commission agency owned or managed by his wife or any other member of his family shall be deemed to be breach of this rule.

(b) Every employee shall, report to the Management is any member of his family is engaged in trade or business or owns or manages an insurance agency or commission agency.

(c) No employee shall, without the previous sanction of the Management, except in the discharge of his duties, take part in registration, promotion or management of any bank or other company which is required to be registered under the Companies Act, 1956{Central Act 1 of 1956} or any other law for the time being in force or any Co-operative Society for commercial purposes:
Provided that employee may take part in the registration, promotion, management of a Co-operative Society substantially for the benefit of employee registered or deemed to be registered under the Karnataka Societies Registration Act, 1960 {Karnataka Act 1 of 1960}and Karnataka Co-operative Societies Act, 1959.

(d) No employee may accept any fee for any work done by him for any public body of any private person without the general or special sanction of the management.

8. Authorship of text-books for use in recognized Educational Institutions: No employee who is a member of the text-books committee shall write or edit any text-book for use in a recognized educational institution during his membership of the committee.

9. Proper use of amenities: No employee shall misuse or carelessly use, amenities provided for him by the management to facilitate the discharge of his duties.

10. Use of services without payment: No employee shall, without making proper and adequate payment avail him/her any service for entertainment for which a hire or price or admission fee is changed.

11. Investment, lending and borrowing :

(i) No employee shall speculate in any stock, share or other investment.
Explanation: Frequent purchase or sale or both of shares, securities or other investments shall be deemed as speculation within the meaning of this sub-rule.

(ii) No employee shall make or permit any member of his family or any person acting on his behalf to make, any investment which is likely to embarrass or influence him in the discharge of his duties.

(iii) If any question arises whether any transaction is of the nature referred to in sub-rule (1) or sub-rule (2), the decision of the Management thereon shall be final.

(iv) No employee shall, save in the ordinary course of business with a bank or a firm of standing duly authorized to conduct banking business, either himself or through any member of his family or any other person acting on his behalf.

(a) Lend or borrow money as principal or agent, to or from any person within the local limits of his authority or with whom he is likely to have official dealings, or otherwise place himself under any pecuniary obligation to such person, or

(b) Lend money to any person at interest or in a manner whereby return in money or in kind is charged or paid:

Provided that an employee may, give to or accept from a relative or a personal friend, a purely temporary loan of an amount not exceeding his total monthly emoluments free of interest, or operate a credit account with a bona fide tradesman or make an advance of pay to his private employee.

12. Insolvency and habitual indebtedness : An employee shall so manage his affairs as to avoid habitual indebtedness or insolvency of an employee against whom any legal proceeding is instituted for the recovery of any debt due from his or for adjudging him as an insolvent shall forthwith report the full facts of the legal proceeding to the Management.

Note: The burden of proving that the insolvency or indebtedness was the result if circumstances which, with the exercise of ordinary diligence, the employee could not have foreseen or over which he had no control and had not proceeded from extravagant or dissipated habits, shall be upon the employee.

13. Movable, Immovable and Valuable Property:–

(i) Every employee shall on his first appointment to any post and thereafter at the interval of every twelve months, submit a return of his assets and liabilities and of all members of his family in such from as may be prescribed by the Management giving the full particulars regarding.

(a) The immovable property inherited by him or any member of his family or owned or acquired by him or any member of his family on lease or mortgage either in his own name or in the name of any member of his family or in the name of any other person;
(b) Shares, debentures and cash including bank deposits inherited by him or any member of his family
(c) Similarly owned, acquired or held by him or any member of his family.
(d) Other movable property inherited by him or any member of his family or similarly owned, acquired or held by him or any member of his family;
(e) Debts or other liabilities incurred by him or any member of his family directly or indirectly.

Note: In all returns, the valuable items of movable worth less than rupees one thousand may be added and shown as a lump sum. The value of articles of daily use such as clothes, utensils, cookery of books need not be included in such returns.

(ii) No employee or any member of his family shall, except with the previous knowledge of the Management, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise either in his own name or in the name of any member of his family.

Provided that the previous sanction of the Management shall be obtained by the employee if any such transaction is, -

a) With a person having official dealings with the employee; or
b) Otherwise than through a regular or reputed dealer.

(iii) Every employee shall report to the Management every transaction concerning movable properly owned or held by him or any member of his family either in his own name or in the name of a member of his family, if the value of such property exceeds rupees one thousand in the case of a member of the teaching employee or rupees five hundred in the case of others:

Provided that the previous sanction of the Management be obtained if any such transaction is, -

a) With a person having official dealings with the employee; or
b) Otherwise than through a regular or reputed dealer.

(iv) Every employee shall report to the Management every transaction concerning cash received by him or by any member of his family from sources other than the employee's salary and allowances, insurance or provident fund, if such cash exceeds rupees one thousand in the case of a member of the teaching employee or rupees five hundred in the case of others.

(v) The Management may at any time, by general or special order, require an employee to furnish, within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him or any member of his family or on his behalf or by any member of the family as may be specified in the order, such statement shall, if so required by the Management, include the details of which, or the source from which such property was acquired.

Explanation: For the purpose of this rule: -

a) "lease" means except where it is obtained from, or granted to, person having official dealings with the employee, a lease of immovable property from year to year or for any term exceeding one year or reserving a yearly rent.
b) The expression "movable property" includes –
    1. Jewellary, insurance policies, provident fund, shares, securities and debentures.
    2. loan advanced by such employee whether secured or not
    3. Motor cars, Motor cycles or any other means of conveyance and
    4. Refrigerators, Radios, Radiograms, Television sets, Tape recorders and Transistors.

14. Restrictions in relation to acquisition and disposal of immovable property outside India and transactions with foreigners etc:

(i) No employee shall, except with the previous sanction of the Management.
a) Acquire, by purchase, mortgage, lease, gift or otherwise either in his own name or in the name of any member of his family, any immovable property situated outside India.
b) Dispose of, by sale, mortgage, gift or , otherwise, or grant any lease in respect of any immovable property situated outside India which was acquired or is held by him either in his own name or in the name of any member of his family.
c) Enter into any transaction with any foreigner, foreign Government, foreign organization or concern.
    1. For the acquisition by purchase, mortgage, lease gift or otherwise either in his own name or in the name of any member of his family of any immovable property.
    2. For the disposal by sale, mortgage, gift or otherwise or any lease in respect of any immovable property which was acquired or is held by him either in his own name or in the name of any member of his family.

15. Guardianship of minor: An employee may not without the previous sanction of the Management act as a legal guardian of the person or property of a minor other than his dependent.

Explanation: A dependent for the purpose of this rule means an employee's wife, children and step children and children's children and shall also include his sisters, brothers, nephews and nieces if residing with him and wholly dependent upon him.

16. Personal representation of the employees: Any representation by an employee shall only be made through proper channel.

17. Bigamous marriage:

(ii) No employee who has a wife living shall contract another marriage without first obtaining the permission of the Management not withstanding that such subsequent marriage is permissible under the personal law for the time being applicable to him.
(iii) No female employee shall marry any person who has Husband living without first obtaining the permission of the Management. Notwithstanding that such subsequent marriage is permissible under the personal law for the time being applicable to her

18. Consumption of intoxicating Drinks and Drugs: An employee shall

(i) Strictly abide by any law relating to intoxicating drinks or drugs in force in any area;

(ii) Take due care that the performance of his duties is not affected in any way by the influence of any intoxicating drink or drug.
(iii) Refrain from consuming any intoxicating drink or drug in public place.
(iv) Not to appear in a public place in a state of intoxication.
(v) Not habitually use any intoxicating drink or drug to excess.

Explanation – For the purpose of the rule, 'public place' means any place or premises (including a conveyance) to which the public have or are permitted to have access, whether on payment or otherwise.

20. Holidays:

All MDES institutions shall observe holidays including National/State Festival holidays as prescribed by the management. The list of holidays shall be communicated to all member institutions in the beginning of the year by MDES Secretary.

All employee members shall be present in their respective institutions for the flag hoisting ceremony compulsorily on 15th August, 26th January and 1st November.

In case of emergencies, the employees shall attend the work on a holiday but they can avail a substituted holiday in lieu of the work done has decided by the management.

21. Office Working Hours / Timings:

(i) General work-timings of the institution are separately notified by the respective institutions. These work-timings are subject to change and the specific schedule to report for duty will be detailed specifically by the concern authority of institutions. Besides, an employee may be required to work beyond his/her working hours if exigencies of academicals or institutional work, so demands and such instructions are to be complied with.
(ii) The teaching staff is required to be present 7 hours and the non-teaching staff required to be present for 8 hours a day from Monday to Friday and 4 hours on Saturdays. The non- teaching staff have to report to work even during vacation when there are no regular classes.
(iii) Every employee shall be in the institution premises 15 minutes before the commencement of the class/ office and remain till the end of working hours including free periods.
(iv) Every employee shall sign/punch in attendance register 10 minutes before the commencement of the class/ office both in the morning and afternoon sessions.

22. Prevention of assaults & abuses:

Any employee or student is not permitted to indulge in corporal, sexual, emotional, physical assaults and abuses which harms students' and employees physically and mentally health in all the MDES Institutions. Disciplinary action shall be taken as per the prevailing laws of the Sate and the rules of MDES on those employees and students' who indulge assaults and abuses.

23. Interpretation of Rules:

(i) In case of any anomaly or doubt in interpretation of these rules, the decision / ruling by the Governing Board shall be final and binding.
(ii) The interpretation and implementation of these rules rest with the Governing Body whose decision shall be final and who may issue such administrative instructions as

may be necessary or give effect to carry out the purpose of the provisions of these rules.

24. Power to amendment and implementation of rules:

(i) The Governing Body may from time to time amend, modify or add /delete and in extraordinary circumstances or cases may relax any of the rules contained herein and these rules and all such amendments, modification/addition or deletion will take effect from the date, specified by the Governing Body.

(ii) Such amendment, alteration, modification/addition or deletion shall become binding on all the teaching and non-teaching employees of MDES.

25. The above stated rules supersede all existing / previous rules relating to terms of employment and service conditions of teaching and non-teaching employees of institutions managed under MDES.

26. Miscellaneous:

General

(i) Every employee shall at all times diligently and faithfully discharge his / her duties and responsibilities and devote time and attention exclusively to the furtherance of the aims, interests and objectives of the institution, utilizing the best of his/her skills in a disciplined manner.

(ii) In all cases of absence from duty without leave or permission or where an employee fails to discharge his/her duties, the principle of 'no work no pay' shall apply.

(iii) Employee members' conduct, speech and dress, should be exemplary, modest and appropriate.

(iv) Every employee member irrespective of position is bound by the instructions issued from time to time by the management.

(v) Every employee shall subject himself / herself for check. If need be by the security personnel including at the gates.

(vi) The heads of the institutions are charged with responsibility of excellence in education, efficient administration, image projection, co-ordination with Government Agencies and other authorities / institutions. They need to be proactive and have positive problem solving attitude coupled with excellent communication skills and public relations.

(vii) It is a part of the duty of teaching employees to take up the substitution classes of his / her absent colleague. Leaving students without teacher can invite disorder, disturbance of other classes and misbehavior of students. Teachers must be made aware that absence of a teacher is made good by the presence of another, and it is the duty of every one to help one another.

(viii) Extra-work is not normally done by the teachers, except for special exigencies. Non-teaching employee may be asked to take up some extra work if required which they are expected to take up with the spirit of cooperation.

(ix) ***Every employee shall furnish their permanent address as well as communication address to the Management in writing. If there is any change in their residence the employee shall update the same immediately. The addresses of employees so recorded in the Office of the Management, shall be the address of the communication from the Management.***

27. CONCLUSION:

Employees are expected to follow these rules and any amendments/modifications which may be carried out by the Management from time to time. Violation of the rules shall automatically attract the disciplinary action. A copy of these rules are supplied to every employee, and no employee can claim ignorance of these rules.

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